

FLUXSOLVE TECHNOVATIONS PRIVATE LIMITED

Registered Address: 3rd Floor, B-315,BLOCK B, TOWER T-1, BRIJ GANGA RESIDENCY, 9 CIVIL LINES,MATHURA,
UTTAR PRADESH, 281001

CIN : U62099UP2023PTC179144

CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

THIS AGREEMENT MADE ON THIS ____1st__ DAY OF ____AUGUST____, 2025

BETWEEN

Rishuv Gorka, S/o Bir Bahadur an individual working as a trainee employee (hereinafter referred to as “**Service Provider**” which expression shall mean and include unless repugnant to the context or meaning thereof, its successors and permitted assigns) of the One Part

AND

FLUXSOLVE TECHNOVATIONS PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 2013 and having its registered office at B-1603, Brij Ganga Residency, Civil Lines, Mathura, U.P. - 281001 (hereinafter referred to as “**Prospect**” which expression shall mean and include unless repugnant to the context or meaning thereof, its successors and assigns) of the Other Part

(**Both parties** are hereinafter collectively referred to as “the Parties” and each individually a “Party”)

WHEREAS:

Pursuant to certain actions/discussions proposed between the **Service Provider** and **Prospect**, as more particularly described in the Annexure 1 (“The Proposal”) the **Service Provider and Prospect** may disclose to each other certain information being of proprietary and /or of confidential nature, and /or **Service Provider and Prospect** may receive or be granted access by any third party to information, including commercial, financial, technical or otherwise, including secret or confidential information of the disclosing Party in whatever form. On the basis of such information, the receiving Party may also prepare analyses, business plans, compilations, data, studies or other documents. All such information disclosed and information prepared and derived on the basis of the aforesaid and other information as hereinafter mentioned in this Agreement including what has been stated under clause 3 hereunder, are collectively referred to as “**Confidential Information**”

The Parties wish to ensure the protection and secrecy of their respective Confidential Information and also record their other mutual covenants and undertakings in respect of information which may be shared.

NOW THEREFORE THIS AGREEMENT WITNESSETH AS UNDER:

- 1) In relation to the Proposal, neither Party shall be required to disclose any particular information to the other and the disclosure of any information shall be entirely voluntary and at the sole discretion of the Party concerned and to the extent deemed necessary by it and is not intended to, and shall not, create any contractual or other relationship or obligation of any kind beyond the terms of this Agreement. Furthermore, nothing contained in this Agreement nor any provision of information as contemplated hereunder, shall be construed as creating, conveying, transferring, granting or conferring by one party on the other any rights, license or authority (including without limitation any intellectual property rights) in or to the information

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provided. The Parties hereto shall use the Confidential Information only for the limited purpose of the Proposal.

- 2) Both Parties acknowledge and understand that any exchange of information shall not commit or bind the other to enter into a contract or otherwise and that neither Party shall rely on any information provided by the other as a commitment or an inducement to act or not to act in any given manner (save and except as agreed to on finalization of any business relationship between the Parties). Further, save and except as may be agreed to on finalization of any business relationship between the Parties, neither Party shall be liable to the other in any manner whatsoever for any decisions, obligations, costs or expenses incurred, changes in business practices, plans, organization, products, services, or otherwise of the other Party, as a result of this Agreement or any exchange of Confidential Information.
- 3) Both Parties agree to regard and preserve as confidential all Confidential Information provided by each to the other or which may be disclosed, received or granted access to by either Party or come to the knowledge of either party in any manner in connection with the negotiations for the possible business relationship. Confidential Information shall also include all information and data relating to the purpose; which is obtained whether in writing, pictorially, in machine readable form, on disc, mail or orally in connection with the discussions (including but without limitation, financial information, know-how, processes, ideas, (whether patentable or not), schematics, trade secrets, technology, customer lists (potential or actual) and other customer-related information, supplier information, sales statistics, market intelligence, marketing, business working, operations, parent, subsidiaries, affiliates and other business strategies and other commercial information of a confidential nature. Further, Confidential Information of the disclosing Party shall also include the analyses, business plans, compilations, data, studies or other documents prepared by the recipient Party based on the information disclosed or derived therefrom. It shall not be necessary for the disclosing Party to mark the information as “confidential” at the time of disclosing the same. The non-marking of the same shall not mean that the information ceases to be Confidential Information.
- 4) a) In maintaining the confidentiality of Confidential Information hereunder both Parties agree that they shall not, without first obtaining the written consent of the other, disclose or make available to any person (including all natural and legal persons {whether incorporated or not}), firm or enterprise, reproduce or transmit, or use (directly or indirectly) for its own benefit or the benefit of others, any Confidential Information save and except both Parties may disclose any Confidential Information to its Directors, officers, employees or advisors on a “need to know” basis to enable them to evaluate such “Confidential Information” in connection with the Proposal.

(b) Both Parties shall ensure that the said employee(s) and /or the said person(s) shall maintain confidentiality with regard to the disclosed Confidential Information, if any being disclosed to them, and shall issue suitable instructions and/or get suitable written undertakings or agreements executed to bind its employees and / or the said person(s) to the same obligations of confidence and safeguarding as the parties hereto and to adhere to the confidentiality / non disclosure terms contained in this Agreement. Provided that the execution of such an agreement shall not absolve the responsibility of the recipient Party to confidentiality and in the event of any breach by the employees of their obligations of confidentiality, it shall always be construed to be a breach of the obligations of the recipient Party under this Agreement.

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(c) Save and except for the purposes mentioned in clause (a) above both Parties further agree that neither Party will part with/disclose any "Confidential Information" received by it to any other person directly or indirectly and such written material /documents will be retained under strict confidentiality by the receiving party nor make copy(s) or reproduce in any way (including without limitation store in any computer or electronic system any written material/documents) such Confidential Information.

(d) Both Parties further agree that the Confidential Information which may pertain to or touch upon any regulatory aspects and /or dealings of either Party with any statutory /government/ related agencies / bodies, whether the said information is received verbally or in writing, will not be disclosed in any manner, either directly or indirectly, to any other persons.

(e) Both Parties further agree to use the same degree of care that it uses to protect its own Confidential Information of a like nature from unauthorized disclosure, but in no event less than a reasonable degree of care

- 5) It is mutually acknowledged and agreed that information shall not be considered "Confidential Information" and the receiving Party shall have no confidentiality obligations under this Agreement with regard to that information to the extent, that such information: (a) at the time of disclosure was in the public domain; or (b) is already known to the receiving Party free of any confidentiality obligation at the time it is obtained from the disclosing Party or a third Party on the disclosing Party's behalf; or (c) after disclosure is or becomes publicly known or available through no wrongful act of the receiving Party; or (d) rightfully received from a third party without restriction or (e) is required to be disclosed pursuant to a requirement of a governmental agency or law so long as the Parties provide each other with timely prior written notice of such requirement. Provided that the burden of proving the existence of any such exceptions shall always be on the Party claiming the same.
- 6) Both Parties further agree and undertake not to disclose the Confidential Information of the other to their agents or contractors without prior written approval from the other and without having first obtained from each agent or contractor a separate written agreement or undertaking binding them to the same obligations of confidence and safeguarding. Further in the event of a business relationship being agreed to, whether a contractor or agent can be appointed at all would be dependent on the terms and conditions governing the business relationship.
- 7) Both Parties further agree to indemnify and keep indemnified each other against all actual loss and damage which the disclosing Party may suffer as a result of any breach of this Agreement by the recipient Party.
- 8) Both Parties further agree that upon termination/expiry of the Services or at any time during its currency, at the request of the disclosing Party, the receiving Party shall promptly deliver to the disclosing Party all copies of the Confidential Information in its possession or under its direct or indirect control, and shall destroy all memoranda, notes and other writings prepared by the receiving Party or its Directors, officers, employees or advisors based on the Confidential Information. Provided that the obligations of this Proposal shall always survive the completion/termination/expiry of this Proposal.
- 9) The Parties hereto acknowledge and agree that in the event of a breach or threatened breach by the other of the provisions of this Agreement, the Party not in breach will

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have no adequate remedy in money or damages and accordingly the Party not in breach shall be entitled to injunctive relief against such breach or threatened breach by the other Party; provided, however, no specification in this Confidentiality Agreement of a specific legal or equitable remedy shall be construed as a waiver or prohibition of any legal or equitable remedies in the event of a breach or threatened breach of this Agreement. Notwithstanding anything contained to the contrary contained in any agreement, there is no limitation of liability on the parties for breach of this Agreement.

- 10) No failure or delay by either Party in exercising or enforcing any right, remedy or power hereunder shall operate as a waiver thereof, nor shall any single or partial exercise or enforcement of any right, remedy or power preclude any further exercise or enforcement thereof or the exercise of enforcement of any other right, remedy or power.
- 11) This Agreement will be governed by the laws of India.
- 12) If any dispute, controversy or claim (“**Dispute**”) between the Parties arises out of or in connection with this Agreement, including any breach, termination or invalidity thereof on account of a Dispute, the Parties shall make every effort to amicably settle the same through mutual discussions and consultations. If a Party gives another Party notice that a Dispute has arisen (a “**Dispute Notice**”) and the Parties are unable to resolve the Dispute amicably within 15 (Fifteen) Business Days of service of the Dispute Notice (or such longer period as the Parties may mutually agree), then the Dispute shall be referred to arbitration. The Parties shall mutually appoint one sole arbitrator for the purposes of resolving the Dispute amicably between the Parties. In the event of any dispute or disagreement regarding the appointment of the sole arbitrator, the arbitral tribunal shall be constituted in accordance with the (Indian) Arbitration and Conciliation Act, 1996 for the time being in force or any statutory modification or re-enactment thereof which at the time of the arbitration is in force (“**Act**”). The arbitration shall be governed by the Act. The place of arbitration shall be in Mumbai, India. The language of the arbitration shall be English. The award of the arbitrator shall be final and binding upon the Parties herein.
- 13) Unless otherwise agreed in relation to the business relationship, this Agreement shall not be assignable or transferable by either Party without the prior written consent of the other Party.
- 14) If either of the Parties decides not to proceed with the Proposal, such Party shall immediately inform the other Party in writing of such decision.
- 15) No public announcement or press release or any such disclosure shall be made by either Party relating to the possible consideration of a business relationship between the Parties hereto or the finalization of such relationship without the prior written consent of the other Party.
- 17) Each Party confirms that such party is acting in this matter as principal, and not as agent or broker for any other person.
- 18) Each Party confirms that it shall notify the other Party immediately of any loss or unauthorized disclosure or use of Confidential Information that comes to its attention.
- 19) Upon demand, or upon the termination of this Agreement by any Party, both Parties shall immediately return any and all Confidential Information in their possession or at

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the request of any Party, destroy all such Confidential Information in its possession and issue a letter in this regard to such Party.

- 20) It is further agreed and promised by the **Service Provider** that, if ever competing business does arise in future; they will assure that internally in their office or anywhere else, information is not exchanged between the two teams.
- 21) This Agreement supersedes all prior discussions and writings with respect to the Confidential Information and constitutes the entire Agreement between the Parties with respect to the subject matter hereof and no modifications of this Agreement or waiver of the terms and conditions hereof shall be binding upon either of the Parties hereto, unless approved in writing by an authorized representative of each Party. In the event that any of the provisions of this Agreement shall be held by a Court or other Tribunal of competent jurisdiction to be unenforceable, the remaining portions hereof shall remain in full force and effect.

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IN WITNESS WHEREOF THE PARTIES HAVE PUT THEIR HANDS ON THIS
1st DAY OF AUGUST, 2025


SIGNED AND DELIVERED BY THE
WITHIN NAMED **RISHUV GORKA** BY
THE HANDS OF ITS DULY
CONSTITUTED REPRESENTATIVE

IN THE PRESENCE OF PRENIT
WANKHEDE




For Fluxsolve Technovations Pvt. Ltd.
Director

SIGNED AND DELIVERED BY THE
ABOVE NAMED **FLUXSOLVE**
TECHNOVATIONS PRIVATE
LIMITED BY THE HANDS OF ITS
REPRESENTATIVE
PANKAJ KUMAR SHARMA
(DIRECTOR) WHO HAS BEEN DULY
AUTHORIZED IN THIS REGARD IN THE
PRESENCE OF PRENIT WANKHEDE



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ANNEXURE – 1 to NDA dated 1st day of August 2025

THE PROPOSAL

- This NDA is for the preliminary and non-binding discussion between the Parties
1.Ensurezy Platform source code development
& Rishuv Gorka, S/o Bir Bahadur
2.Any other confidential documentation, source code or any tangible/intangible materials and artifacts owned by the **Prospect (FLUXSOLVE TECHNOVATIONS PRIVATE LIMITED)**



Your Signature

(RISHUV GORKA)

For Fluxsolve Technovations Pvt Ltd

For Fluxsolve Technovations Pvt. Ltd.

Director

Pankaj Sharma
Founder & CEO